

24VECV04247 24VECV04247

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-17

Motion: PLAINTIFF'S MOTION FOR ATTORNEY FEES

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Case Number: 24VECV04247 Hearing Date: September 17, 2026 Dept: W

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

INESSA TSATURYAN, an individual,

Plaintiffs,

vs.

GENERAL MOTORS, LLC, a limited liability

Company; CASA DE CADILLAC, a

corporation; and DOES 1 through 50,

inclusive,

Defendants.

CASE NO: 24VECV04247

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION FOR ATTORNEY FEES

Dept. W

8:30 a.m.

September 17, 2026

[TENTATIVE] ORDER: The Court GRANTS Plaintiff's Motion for Attorney Fees, in the modified amount of \$12,501.47. \$6,757.74 of this total is awarded to Wirtz Law, and \$5,743.73 is awarded to Norman Taylor & Associates.

Background

This is a lemon law case. Plaintiff Inessa Tsaturyan alleges that on March 20, 2023, they purchased a vehicle manufactured by General Motors, LLC, for \$89,015.77. Plaintiffs allege that the vehicle exhibited numerous defects that could not be repaired after a reasonable number of repair attempts.

On September 4, 2024, Plaintiff brought suit against Defendants, alleging two violations of the Song-Beverly Act.

On May 7, 2025, Plaintiff's original counsel Normal Taylor & Associates gave notice of the association of a new law firm – Wirtz Law.

On December 4, 2025, the parties settled this case for \$135,000.00, with attorney fees and costs to be determined by noticed motion.

Now, Plaintiff moves for an award of attorney fees as to both of their law firms.

Discussion

Plaintiff requests a total of \$52,952.75 in attorney fees and costs. (Mot. for Attorney Fees, pp. 2:1-5.) Specifically, Plaintiff requests \$33,597.50 in reasonable attorney fees, \$16,798.75 as a 1.5x lodestar multiplier, and \$2,556.47 in costs. (Ibid.)

Plaintiff bases their request for fees on the fee-shifting provision of the Song-Beverly Act, which states that a prevailing buyer can, "recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution." (Civ. Code § 1794(d).) Plaintiff also asserts that the settlement agreement between the parties gives them the right to recover fees and costs by motion. (Wirtz Decl. Ex. 7, ¶ 2.) Thus, the Court will proceed and analyze this motion on the merits.

Fee Motion Analysis

"[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. ... The reasonable hourly rate is that prevailing in the community for similar work. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." ((PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095 [internal citations omitted]); (see Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 818 [applying the lodestar method to determine attorneys' fees in Song-Beverly action].) Thus, the Court will analyze the reasonableness of: A) Plaintiff's lodestar multiplier request, B) Plaintiff's hourly rates, C) Plaintiff's hours, and D) Plaintiff's costs.

Lodestar Multiplier

First, the Court will analyze Plaintiff's request for a 1.5x lodestar multiplier (\$16,798.75). While the baseline lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award[;]" and (4) the success achieved. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138-1139.)

The Court finds that the facts of this case don't support the application of a multiplier. There is no indication that this lemon law case was complex or presented any challenging legal issues, particularly considering that Plaintiff's counsel specializes in these types of cases. Notably, not a single substantive motion was filed in this case. Additionally, there is no evidence that Plaintiff's counsel was precluded from taking other cases because of the nature of this case. Lemon Law firms take on these cases hundreds at a time, so the opportunity cost of taking on one more is negligible.

Nor is the success achieved by Plaintiff's counsel exceptional. This case was filed in September of 2024 and settled in December of 2025. The vehicle Plaintiff purchased was worth \$89,000.00, and the case settled for \$135,000.00. The Court further notes that counsel's skill and experience is also being factored into the reasonableness of their fees. Thus, it would be unreasonable to award an enhancement here. (See *Holguin v. Dish Network LLC* (2014) 229 Cal.App.4th 1310, 1333 ["Where, as here, the court determines that the lodestar itself constitutes a reasonable fee for the action at issue, no enhancement is warranted."].)

For these reasons, the Court declines to grant this multiplier.

Plaintiff's Hourly Rates

Second, the Court will evaluate the reasonableness of Plaintiff's hourly rates. Plaintiff bills for multiple lawyers across two separate law firms: Norman Taylor & Associates, and Wirtz Law.

Law Firm 1: Norman Taylor & Associates (NTA)

Attorneys

Norman F. Taylor - \$645.00

Nick McNaughton - \$300.00

Lusine Musat - \$300.00

(Taylor Decl. Ex. 1, p. 6.)

Law Firm 2: Wirtz Law (WL)

Attorneys

Susanna Gonzalez-McCaulley - \$450.00

Amy Rotman - \$600.00

Jessica Underwood - \$600.00

Paralegals

Katelynn Cespedes - \$250.00

Rebecca Evans - \$300.00

Nicole Kinney - \$250.00

(Wirtz Decl. Ex. 1, p. 12.)

“[T]he court's discretion in awarding attorney fees is ... to be exercised so as to fully compensate counsel for the prevailing party for services reasonably provided to his or her client.” (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 395 [emphasis added].) The trial court may reduce the award where the fee request appears unreasonably inflated, such as where the attorneys' efforts are unorganized or duplicative. (Serrano v. Unruh (1982) 32 Cal.3d 621, 635, fn. 21.) Moreover, courts have repeatedly stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. (East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.)

Here, the Court has determined that most of Plaintiff's requested rates are too high. The Court does not believe that high-volume, boilerplate lemon law cases like this one justify rates as high as \$600 an hour. The Court has seen enough suits brought under Song-Beverly to know that every paper filed in these cases, from the Complaint, to the discovery requests, to the Demurrer oppositions are copied and pasted from templates, with minimal personalization to each client. What's more, the issues presented in this case were not novel or complex. Thus, there was no special skill or insight required to litigate this case. Moreover, the only motion filed in this entire case was a brief motion to compel deposition. Thus, there was no special skill or insight required to litigate this case.

For similar reasons, the Court also takes issue with Plaintiff charging significantly higher hourly rates for some of their more experienced lawyers. The reason why a more senior lawyer can charge higher rates is that they will bring more knowledge to the table, work more efficiently, and produce better outcomes for their clients. That logic does not hold in this context. There was no motion practice in this case. Additionally, this case also did not involve any complex issues of law. Whatever documents that were filed were based on templates and needed next to no specific factual personalization. Moreover, Plaintiff billed for a significant number of hours. Thus, charging significantly higher rates is not reasonable, as this work was not done efficiently, and could have been done by a much less experienced attorney. (See Mikhaeilpoor v. BMW of North America (2020) 48 Cal.App.5th 240, 256 [Court of Appeals held that it was not an abuse of discretion for the trial court to reduce the hourly rates of every lawyer in a lemon lawsuit to \$350.00].)

For these reasons, the Court reduces the hourly rates of attorneys Norman F. Taylor, Susanna Gonzalez-McCaulley, Amy Rotman, and Jessica Underwood to \$350.00.

Plaintiff's Hours Billed

Next, the Court will assess the reasonableness of Plaintiff's hours billed.

The Song-Beverly Act, "requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (*Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 470 [quoting *Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104].)

Moreover, "[w]hen a 'voluminous fee application' is made, the court may ... 'make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure.'" (*Kerkeles v. City of San Jose* (2015) 243 Cal.App.4th 88, 102.) Moreover, "trial courts need not, and indeed should not, become green-eyeshade accountants. The essential goal in shifting fees (to either party) is to do rough justice, not to achieve auditing perfection. So trial courts may take into account their overall sense of a suit, and may use estimates in calculating and allocating an attorney's time." (*Fox v. Vice* (2011) 563 U.S. 826, 838.)

Here, Plaintiff bills for an astonishing 71.9 hours across seven lawyers, three paralegals, in two separate firms. (Wirtz Decl. Ex. 1; Taylor Decl. Ex. 1.) As explained, the Court's overall sense of this suit is that it is a typical lemon law case that involved no motion practice. Moreover, Plaintiff submits 18 pages of billing records across these two firms. (*Ibid.*) By spreading this billing across so many lawyers and entries, Plaintiff makes it difficult for the Court to evaluate the reasonableness of each individual entry. Thus, Plaintiff's billings are voluminous and are therefore subject to across-the-board cuts in hours. For these reasons, the Court will make the following reductions:

Susanna Gonzales-McCaulley's hours reduced from 2.8 hours to 1.2;

Amy Rotman's hours reduced from 6.6 hours to 2.5;

Jessica Underwood's hours reduced from 10.6 to 4;

Katelynn Cespedes' hours reduced from 6.2 to 4;

Rebecca Evans' hours reduced from 4.5 to 2;

Nicole Kinney's hours reduced from 1.5 to 1;

and

Norman Taylor's hours reduced from 24.5 to 10;

Nick McNaughton's hours reduced from 2.3 to 1;

Lusine Musat's hours reduced from 7.5 to 3.5.

Plaintiff's Costs

Finally, the Court will evaluate Plaintiff's request for \$2,556.47 in costs. (See Memorandum of Costs.) Under CIV § 1794(d), when a buyer prevails in a Song-Beverly action, "the buyer shall be allowed . . . to recover . . . the aggregate amount of costs and expenses . . . determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (CIV § 1794(d) [emphasis added].) Thus, Plaintiff is entitled to recover any costs they reasonably incurred as part of this litigation.

Here, Plaintiff submitted their firms' memoranda of costs on June 3rd and 4th, 2026. Defendant did not challenge or move to tax these costs. Moreover, Defendant's Opposition does not raise the issue of Plaintiff's requested costs. Therefore, the Court will grant Plaintiff all \$2,556.47 in requested costs - \$893.73 in costs to Norman Taylor and Associates, and \$1,662.74 to Wirtz Law, respectively.

Summary

In summary, the Court declines to grant Plaintiff a 1.5 lodestar multiplier. Additionally, the Court reduces the hourly rates of Norman F. Taylor, Susanna Gonzalez-McCaulley, Amy Rotman, and Jessica Underwood to \$350.00. Further, the Court reduced Plaintiff's requested hours across-the-board, due to voluminous billing entries. Specifically, Wirtz Law's lawyer hours were reduced by 12.3, and their paralegal hours were reduced by 3.2. Meanwhile, Norman Taylor's lawyer hours were reduced by 19.8. Based on Plaintiff's adjusted hours and rates, the Court calculates Wirtz Law's reasonable attorney fees at \$5,095.00, and Norman Taylor's reasonable attorney fees at \$4,850.00, for a combined total of \$9,945.00. Finally, Court grants Plaintiff's request for \$893.73 in costs as to Norman Taylor & Associates, and \$1,662.74 as to Wirtz Law.

This brings Plaintiff's total reasonable attorney fees and costs to \$12,501.47. \$6,757.74 of this is awarded to Wirtz Law, and \$5,743.73 is awarded to Norman Taylor & Associates.

Conclusion

The Court GRANTS Plaintiff's Motion for Attorney Fees, in the modified amount of \$12,501.47. \$6,757.74 of this total is awarded to Wirtz Law, and \$5,743.73 is awarded to Norman Taylor & Associates.

IT IS SO ORDERED, Plaintiff TO GIVE NOTICE.

September 17, 2026

Judge of the Superior Court